

VCU311017 Hernandez, Hector Salvador Jr. vs. FCA US, LLC.

County: tulare

Division: Civil Law and Motion

Department: 2

Hearing date: 2026-09-15

Motion: Plaintiff's Motion for Attorneys' Fees

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Re: Hernandez, Hector Salvador Jr. vs. FCA US, LLC.

Case No.: VCU311017

Date: September 15, 2026

Time: 8:30 A.M.

Dept. 2-The Honorable Bret D. Hillman

Motion: Plaintiff's Motion for Attorneys' Fees

Tentative Ruling: To grant the motion and award \$7,105.00 in fees and \$3,422.87 in costs.

Facts

In this matter, Plaintiff purchased new 2018 Dodge Durango ("Vehicle") which allegedly developed substantial defects that Defendant was unable to repair after a reasonable number of attempts. On July 23, 2025, Defendant made a 998 offer of \$20,000.00 cash plus attorney fees, costs, and expenses pursuant to California Civil Code section 1794, subdivision (d), which Plaintiff accepted.

On May 18, 2026, Plaintiff filed this motion for fees and costs, seeking fees in the amount of \$22,753.67, consisting of: (1) 13,208.00 in attorney fees; (2) a 1.35 multiplier enhancement of \$4,622.80; (3) 3,422.87 in costs and expenses; and (4) \$1,500.00 for Plaintiff's counsel to review Defendant's Opposition, draft the Reply, and attend the hearing on this Motion (though counsel expects to incur over \$1,500.00 in fees on these tasks)

In opposition, Defendant appears to challenge each and every entry, argues the rate charged is excessive, notes no memorandum of costs filed and that no multiplier should be awarded.

Authority and Analysis

Lodestar Calculation

"A trial court assessing attorney fees begins with a touchstone or lodestar figure, based on the 'careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case.'" (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.) "The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. The court may also consider whether the amount requested is based upon unnecessary or duplicative work." (Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448.)

"Under that [lodestar]method, the court 'tabulates the attorney fee touchstone, or lodestar, by multiplying the number of hours reasonably expended by the reasonable hourly rate prevailing in the community for similar work.'" (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.)" (Marshall, supra, 54 Cal.App.5th at 285.)

Here, Plaintiffs seek to recover 27.6 hours at rates ranging from \$910 to \$195 and to for an award of a 1.35 multiplier.

No Multiplier

As to the 1.35 enhancement sought by Plaintiff, such an award is based on the following factors:

The novelty and difficulty of the questions involved;

The skill displayed in presenting them;

The extent to which the nature of the litigation precluded other employment by the attorney; and

The contingent nature of the fee award. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.)

The Court finds Plaintiffs' justification for the multiplier is conclusory and does not set forth an adequate basis to award an enhancement. The Court does not find that the work cited demonstrates such extraordinary skill to justify an enhancement to the award sought. This case settled before trial, and the Court finds that this appears to be a standard Song-Beverly case, with no additional novelty or difficulty of issues evidenced from the supporting papers filed by Plaintiff.

As to the third factor, the Court does not find that Plaintiff's counsel was precluded from accepting other work.

As to the fourth factor, The Court further agree that the "contingent risk" here was minimal given the mandated fee-shifting of attorneys' fees and costs. (Ketchum v. Jones (2001) 24 Cal.4th 1122, 1141-42 [Where attorney fees are mandatory, the "contingent" risk of "establishing eligibility for the award" is not actually contingent and does not warrant an enhancement.].)

The Court will not award an enhancement in this case.

Reasonable Local Rate

"The lodestar calculation begins with a determination of the 'reasonable hourly rate,' i.e., the rate 'prevailing in the community for similar work.'" (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.)" (Marshall, supra, 54 Cal.App.5th at 285.) "The general rule is '[t]he relevant "community" is that where the court is located.'" (Altavion, Inc. v. Konica Minolta Systems Laboratory, Inc. (2014) 226 Cal.App.4th 26, 71.)" (Marshall, supra, 54 Cal.App.5th at 285.) "The reasonable hourly rate is that

prevailing in the community for similar work.” (PLCM Group Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.) “The experienced trial judge is the best judge of the value of professional services rendered in his court.” (Id.) Additionally, the determination of the value of the legal services is committed to the discretion of the trial court without necessity of expert testimony. (Cordero-Sacks, v. Housing Authority (2011) 200 Cal App 4th 1267, 1286.)

There is no evidence provided that the attorney rates ranging from \$910 to \$435 for attorneys, and rates ranging from \$360 to \$195 for clerks, are the prevailing rates in Tulare County for counsel, where this Court resides. This Court, based upon its experience as to the prevailing rates in Tulare County, sets the hourly rate at \$350 per hour for counsel. Further, the Court will set all clerk work performed at the rate of \$150 per hour.

Number of Hours Reasonably Expended

Plaintiff's counsel's records indicate 27.6 hours incurred on this matter.

Although detailed time records are not required, courts have expressed a preference for contemporaneous billing and an explanation of work. (Raining Data Corp. v. Barrenechea (2009) 175 Cal.App.4th 1363, 1375.) “Of course, the attorney's testimony must be based on the attorney's personal knowledge of the time spent and fees incurred. (Evid.Code, § 702, subd. (a) [“the testimony of a witness concerning a particular matter is inadmissible unless he has personal knowledge of the matter”].) Still, precise calculations are not required; fair approximations based on personal knowledge will suffice.” (Mardirossian & Associates, Inc. v. Ersoff (2007) 153 Cal.App.4th 257, 269.)

The starting point for the determination as to hours is the attorney's submitted time records. (Horsford v. Board of Trustees of Calif. State Univ. (2005) 132 Cal. App. 4th 359, 395-397—verified time records entitled to credence absent clear indication they are erroneous.)

Plaintiff has the burden of showing that the fees were reasonably necessary to the conduct of the litigation and were reasonable in amount. (Morris v. Hyundai Motor Am. (2019) 41 Cal.App.5th 24, 34, as modified (Oct. 11, 2019), rev. denied (Jan. 2, 2020) [internal quotations and citations omitted].) If the party seeking fees fails to meet this burden, and the court finds the time expended or amount charged is not reasonable under the circumstances, “then the court must take this into account and award attorney fees in a lesser amount.” (Mikhaeilpoor v. BMW of N. Am., LLC (2020) 48 Cal.App.5th 240, 247 [citing Nightingale v. Hyundai Motor Am. (1994) 31 Cal.App.4th 99, 104]; see also Ketchum v. Moses (2001) 24 Cal.4th 1122, 1138 [where prevailing party fails to meet that burden, the court “has broad discretion to adjust the fee downward or deny an unreasonable fee altogether”].)

As noted above, Defendant challenges, seemingly, every entry either via the rate discussed above or the hours billed. Unless discussed below, the Court rejects Defendant's challenges.

07/21/2025 – Draft MSC Statement: Here, Defendant challenges the 3 hours incurred regarding drafting the MSC statement by a law clerk, seeking a reduction to 2 hours. The Court agrees and will reduce the entry to 2 hours (-1 as to Silva)

07/24/2025 – Revise and Finalized MSC Statement: Here, Defendant challenges the 2.5 additional hours incurred by counsel as to the MSC statement. The Court considers review and finalization by an attorney of a law clerk's work reasonable and will not make a reduction here. (-0 hours)

07/31/2025 – Prepare for and attend mediation: Here, Defendant challenges the 6.1 hours incurred by counsel for preparation for and attendance at mediation, seeking a reduction to 1 hour as excessive, inflated and overstaffing. The Court will reduce this entry by 2.1 hours (-2.1 as to Orte.)

08/08/2025 – Draft trial documents: Here Defendant challenges the 2.2 hours entered as excessive and unnecessary because a settlement offer was served 7/23/2025 and accepted 8/13/2025. The Court disagrees that simply because a settlement offer was provided that trial preparation should cease. The Court will make no reduction here (-0 hours)

Anticipated – Review opposition and draft reply re: fee motion: The Court does not award anticipated fees and therefore will not award this amount.

As a result, the Court calculates the fees as follows: 17 hours at \$350 per hour and 7.7 hours at \$150 per hour, for a total of \$7,105.00

Costs

Plaintiff seeks to recover \$3,422.87 in costs.

Defendant argues no memorandum of costs has been filed, has not categorized the recoverable costs and provide no evidentiary basis justifying the expenses and costs.

Plaintiff argues that no memorandum of costs needs to be filed, as Plaintiff seeks recovery under Code of Civil Procedure section 1794(d) and that the definition of expenses pursuant thereto is wider than section 1033.5.

To start, section 1033.5 sets forth allowable costs reasonably necessary to "the conduct of litigation." (Code Civ. Proc., § 1033.5.)

However, Civil Code section 1794, subdivision (d) enables the prevailing "buyer" in a Song-Beverly matter to be "...allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses..." (Civ. Code, § 1794, subd. (d), emphasis added.) Courts have interpreted Section 1794's "expenses" provision to include "out-of-pocket expenses beyond the costs identified in Code of Civil Procedure section 1033.5. (Smalley v. Subaru of America, Inc. (2022) 87 Cal.App.5th 450, 457 [citing Jensen v. BMW of North America, Inc. (1995) 35 Cal.App.4th 112, 137-138, disapproved on other grounds].)

Defendants arguments center on reasonable necessity, the alleged requirement of a memorandum of costs and lack of evidentiary support for the costs. However, Plaintiff's counsel has filed a declaration attesting to the costs, inclusive of a itemized summary of costs and expenses.

As such, the Court will award the costs and expenses as requested in the amount of \$3,422.87.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.